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International Law

Topic 5: Dynamic between IL and National Law and Jurisdiction

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International Law

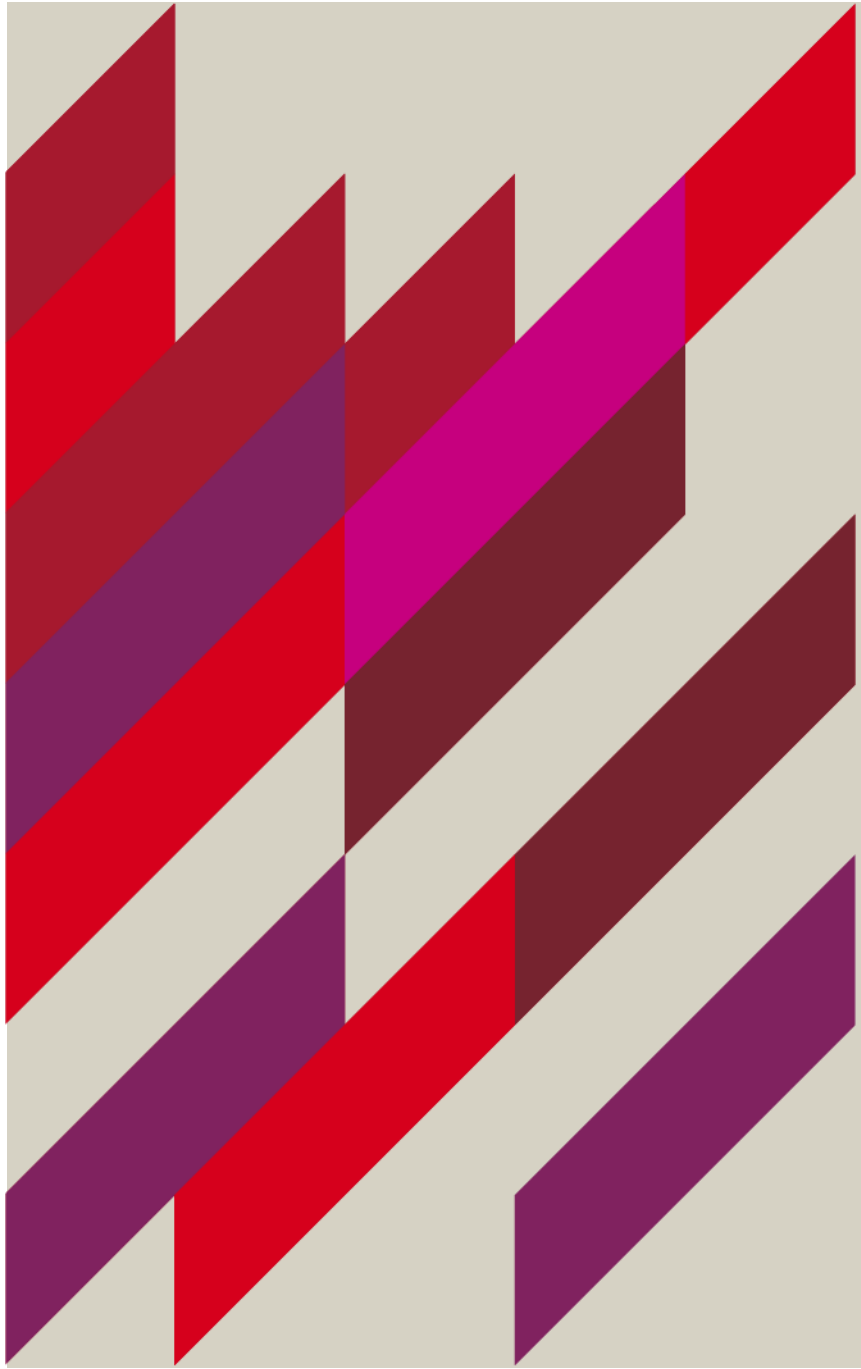
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Part A: Dynamic between IL and National Law

- Introduction on the relationship between international and national law
- The theories explaining this relationship
- The relationship between international law and Australian law (including approach to the different sources of international law)

Part B: Jurisdiction

- Definitions and distinctions
- Forms of jurisdiction (‘jurisdiction to Prescribe’/ ‘jurisdiction to Enforce’/ ‘jurisdiction to Adjudicate’)
- Grounds for asserting jurisdiction (Principle of territoriality (territorial jurisdiction); Principle of nationality (jurisdiction on the basis of nationality active/passive); Principle of protection (protective jurisdiction); Principle of universality (universal jurisdiction)
- Issues of concurring jurisdiction



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Part 1: International Law and National Law

Recall

- **Sovereign equality of states:** each state can make its own decisions about how to order its affairs, with the result that one state may not force its will upon others (Rose 2022)

- **A voluntary consent-based system:** states have the authority or capacity to limit the exercise of their sovereign power by consenting to be bound by international legal rules

- **Horizontal rather than vertical system of authority:** there is no superior authority => states are both the makers and the enforcers of international law

- **"International law is everywhere":** Expansion of international law with increasing penetration of domestic legal orders

⇒ *What does this all mean for the relationship between national laws and the international laws?*

Vienna Convention on the Law of Treaties (1969)

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Article 27: Internal law and observance of treaties

A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty…

Article 46: Provisions of internal law regarding competence to conclude treaties

1. A State may not invoke the fact that its consent to be bound by a treaty has been expressed in violation of a provision of its internal law regarding competence to conclude treaties as invalidating its consent unless that violation was manifest and concerned a rule of its internal law of fundamental importance.
2. A violation is manifest if it would be objectively evident to any State conducting itself in the matter in accordance with normal practice and in good faith.

The international law perspective

International Law Commission's Draft Articles on State Responsibility (2001), Art. 3:

The characterization of an act of a State as internationally wrongful is governed by international law. Such characterization is not affected by the characterization of the same act as lawful by internal law.

⇒The relationship from the perspective of international law is simple: national law is (mostly) irrelevant in the consideration of international law obligations, and state responsibility for internationally wrongful acts

⇒Yet, **domestic law perspective** is more complicated

National law remains relevant to international law

- International law obligations regularly require the enactment of national legislation and action – therefore national law is the fulfilment of international law obligations
- National law can act as a source of factual evidence about a State's compliance or non-compliance with international law. National law can serve as evidence for the existence of both state practice and *opinio juris* when determining customary international law
- National court decisions can be subsidiary sources of IL.
- National law can offer interpretation of international law

Two Theories: Monism and Dualism

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International law and National Law

Monism

- Sees national and international law as part of one single normative legal order
- International law has direct effect (incorporation)
- Holds the same legal authority as national law in legal system
- Inconsistency between the two legal systems must be resolved (frequently in favour of international law)
- Often associated with civil law tradition

Dualism

- Sees international and national law as distinct legal orders
- The only law that has force at the domestic level is national law – therefore international law must be transformed into domestic law to have effect (transformation)
- Inconsistencies do not arise: the systems have different subjects and fulfil different purposes
- Often associated with common law tradition

⇒In reality, blends of the two theories characterise the relationship of international law to most domestic legal orders

German Basic Law

International law and National Law

Article 25: Primacy of international law

The general rules of international law shall be an integral part of federal law. They shall take precedence over the laws and directly create rights and duties for the inhabitants of the federal territory.

Dutch Constitution (1983)

International law and National Law

Article 90

The Government shall promote the development of the international rule of law.

Article 91

(1) The Kingdom shall not be bound by treaties, nor shall such treaties be denounced without the prior approval of the Parliament…

(2) …

(3) Any provisions of a treaty that conflict with the Constitution or which lead to conflicts with it may be approved by the Chambers of the Parliament only if at least two-thirds of the votes cast are in favour.

Article 93

Provisions of treaties and of resolutions by international institutions, which may be binding on all persons by virtue of their contents shall become binding after they have been published.

Article 94

Statutory regulations in force within the Kingdom shall not be applicable if such application is in conflict with provisions of treaties that are binding on all persons or of resolutions by international institutions.

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International Law and Australian Law

Basic approach to international law in Australia

International law and National Law

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i. International Law as such does not form part of Australian law.
ii. Effect is first and foremost given to Australian law.
iii. Australian courts may refer to international law.
iv. In the absence of any contrary indications, Australian law is to be interpreted consistently with Australia's international obligations.
v. The international obligations applicable to Australia are generally to be identified as they exist at the time the interpretive question arises.
vi. In the event of conflict, international law cannot be invoked to override clear and valid Australian legal provisions.
vii. Parliament may legislate on matters in breach of international law, thereby 'taking the risk of international complications'.
viii. Australian courts should give special attention to protecting human rights and fundamental freedoms as recognised under international law.

Source: Law Society NSW, The Practitioner's Guide to International Law (2nd ed), 2014

International Law and the Australian Constitution

International law and National Law

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Two key sections:

- Section 51 (xxix) known as the External Affairs Power, grants federal Parliament the power to enact legislation with respect to 'external affairs'
- Section 61 the power to conclude treaty is vested in the executive branch of government
- Section 75(i) vests the High Court with original jurisdiction in relation to 'matters arising under a treaty'

The Constitution does not address:

- How Australia enters into binding relationships on the international stage
- The legal effect of international law within the domestic legal system
- Responsibility for enforcement at the domestic level

International Law and the Australian Constitution: The External Affairs Power

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International law and National Law

Section 51 (xxix) of the Constitution 'is intended to enable Australia to carry out its functions as an international person, fulfilling its international obligations and acting effectively as a member of the community of nations.' (Murphy J in New South Wales v Commonwealth [1975])

Relevant particularly when determining when Federal government has power to enact legislation that might otherwise fall to the powers of states

Scope of valid use of external affairs power, among others:

- The legislation carries out or gives effect to Australia's international treaty obligations;
- The legislation gives effect to Australia's obligations under customary international law;
- Subject matter of the legislation may affect Australia's relations with international persons, including states and international organisations;
- The legislation is related to a matter of 'international concern' (Koowarta v Bjelke-Petersen [1982] HCA 27);

Commonwealth has broad discretion when exercising external affairs power.

Tasmanian Dam Case (1983)

International law and National Law



The Examiner

142nd year

Launceston 31 5111, Devonport 24 1711, Hobart 34 5011, Burnie 31 2004

Vol. CXLII, No. 96, Saturday, July 2, 1983. 56p. 25c.

Geelong won't trouble NTFA, says Withers — Back Page

Doorknock appeal tomorrow

THE SALVATION ARMY

NO DAM!

"There is almost no aspect of life which . . . may not be the . . . possible subject of Commonwealth legislative power."
— Sir Harry Gibbs

"I want to reassure Tasmanians that the Commonwealth will not in any sense retract from any of its commitments."
— Mr Hawke

". . . a sad, sad day for Tasmania, but the decision stands and we must accept it."
— Mr Gray

Landmark ruling expands Federal powers

DAM SITE

The Examiner

Tasmanians have been dealt a hurtful blow by the High Court decision, but they must reject bitterness and despondency and accept the need for unity.

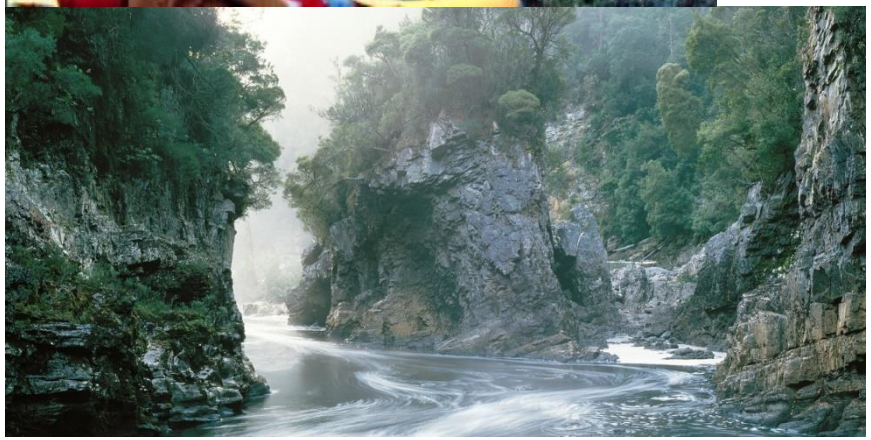
And the Federal Government must appreciate the magnitude of the economic and social dislocation it has visited on this State.

Editorial, Page 6.

CLICK!

• More on the dam, Pages 2, 3, 4, 5, 6, 14, 15.





Tasmanian Dam Case (1983)

International law and National Law

Commonwealth v Tasmania [1983] 158 CLR 1

Facts: In 1974 Australia became party to the World Heritage Convention. The Commonwealth passed legislation to protect part of Tasmania's wilderness from the building of a dam. The Tasmanian Government challenged the validity of the Commonwealth legislation on the grounds that the Commonwealth had no power to legislate on State matters, such as the dam.

The High Court considered whether the Commonwealth Government had the power to stop the Tasmanian Government from damming the Gordon River under Commonwealth legislation.

HC majority held:

- Even though the dam would normally be a matter for Tasmania, in light of Australia's international obligations the Commonwealth was entitled to intervene.
- Australia is a party to the World Heritage Convention, and the High Court found that being a party to such an agreement directly relates to external affairs. This allows the Commonwealth to pass laws that give effect to Australia's international legal obligations.
- However, if the Commonwealth's use of the external power was no more than a device to exercise legislative power then it would probably not be legitimate.

Treaties and Australia

International law and National Law

- Treaties do not have a direct effect in Australia => treaty provisions need to be validly incorporated into Australian domestic law.

- Very limited class of treaties that are directly applicable without legislative implementation, e.g. certain peace treaties, boundary treaties, etc.

***Dietrich v The Queen* (1992) 177 CLR 292**

Facts: The appellant claimed he should have had access to publicly funded representation and thus claimed that he was denied a fair trial. The International Covenant on Civil and Political Rights (ICCPR) guarantees the right to fair trial and free representation in certain cases (Art. 14 (3) (d). Australia is party to the ICCPR.

"Ratification of the ICCPR as an executive act has no direct legal effect upon domestic law; the rights and obligations contained in the ICCPR are not incorporated into Australian law unless and until specific legislation is passed implementing the provisions33. No such legislation has been passed". Mason CJ and McHugh J

Treaty incorporation

International law and National Law

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Transformation of treaties into domestic law

- Adoption of new legislation that gives effect to the treaty provisions.
- Amendment of existing legislation.
- Schedule of a treaty to an existing act (this does not constitute full incorporation)
- Treaty provision already given effect in existing legislation.
- Give the treaty the force of law, e.g. *Diplomatic Privileges and Immunities Act 1967, s 7*:

> **7 Vienna Convention on Diplomatic Relations to have force of law**
>
> (1) Subject to this section, the provisions of Articles 1, 22 to 24 (inclusive) and 27 to 40 (inclusive) of the Convention have the force of law in Australia and in every external Territory.

International Law and Statutory Interpretation

International law and National Law

- ✓A statute directly incorporates the **text** of the treaty: the statute should be interpreted in line with the meaning given to it in the treaty unless the legislator expressed a contrary intention.➔ ***Applicant A v Minister for Immigration and Ethnic Affairs (1997) 190 CLR 225.***

- ✓A treaty can assist in the interpretation of Australian legislation (*Acts Interpretation Act* 1901 (Cth) s 15AB(2)(d)), but only if:

  a. there was actual or contemplated participation by Australia in that treaty prior to enactment of the legislation in question; and

  b. to confirm the ordinary meaning of the text of the act s15AB (1 (1)), OR either the legislation in question is ambiguous or obscure, or would otherwise lead to a result that is manifestly absurd or is unreasonable (s 15AB(1 (b))

  However, a treaty cannot qualify or modify the meaning of legislative words or expressions which are otherwise clear (***Yager v The Queen*** [1977] 139 CLR 28 (Mason J))

International Law and Statutory Interpretation

International law and National Law

- ✓In a case of ambiguity in a statute, the courts should favour a construction that accords with international law (conflicting views on the extent to which this common law rule should be applied). It is a presumption only. ***Jumbunna Coal Mine NL v Victoria Coal Miners' Association*** (1908) 6 CLR 309.

  ➔ Does not apply to clear legislation contrary to international law. ***Polites v Commonwealth*** (1945) 70 CLR 60.

- ✓ Presumption that Australian courts will not impute to Parliament an intention to abrogate or curtail certain human rights or fundamental freedoms, including rights and privileges recognised under the common law, unless such an intention is clearly manifested by unambiguous and unmistakable language ***Coco v The Queen*** (1994) 179 CLR 427 at 437.

Customary International Law: Transformation or Incorporation?

International law and National Law

Recall: Customary international law is formed when there is uniform/ widespread and consistent state practice across a wide range of states and where there is evidence that this practice is maintained out of a sense of legal obligation (*opinio juris*)

⇒What is its effect on Australian law? Debate surrounds two approaches :

- **The doctrine of transformation** – customary international law only becomes part of Australian law when formally adopted by Parliament or the courts as part of common law
- **The doctrine of incorporation** – that customary international law is automatically a source of Australian law, unless there is a rule to the contrary

⇒Australia has not clearly adopted either approach – and both doctrines have been recognised in High Court decisions

⇒ BUT: rule of customary international law cannot generally be adopted where inconsistent with domestic legislation or essential common law doctrine

Customary International Law and Australian Law

International law and National Law

Nulyarimma v Thompson [1999] 96 FCR 153

Facts: Australia is party to the 1948 Genocide Convention. Member of the Aboriginal community claimed that sponsorship of Native Title Act amendments and failure to seek World Heritage Listing of Lake Eyre region were acts of genocide. Appellants argue that genocide is a part of customary international law, and that even without legislation criminalising genocide within Australia, Australian courts can try individuals accused of genocide.

Question: Was the customary international law prohibition of genocide part of Australian law?

- FCA ruled that even if genocide is recognised as being part of international customary law it does not form part of Australian law in the absence of domestic legislation declaring genocide a crime
- FCA accepted that the prohibition of genocide constituted a jus cogens norm, but without implementing legislation, had no effect on Australian law

Customary International Law and Australian Law

International law and National Law

***Nulyarimma v Thompson* [1999] 96 FCR 153**

'[I]t is difficult to make a general statement covering all the diverse rules of international customary law. It is one thing, it seems to me, for courts of a particular country to be prepared to treat a civil law rule like the doctrine of foreign sovereign immunity as part of its domestic law, whether because it is accepted by those courts as being "incorporated" in that law or because it has been "transformed" by judicial act. It is another thing to say that a norm of international law criminalising conduct that is not made punishable by the domestic law entitles a domestic court to try and punish an offender against that law."

J Wilcox para 25.

Customary International Law and Australian Law

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International law and National Law

Nulyarimma v Thompson [1999] 96 FCR 153

Merkel J in dissent identified criteria for customary international law to become a source of common law:

- The customary rule must have 'attained ... general acceptance by ... the community of nations'
- The courts must consider whether the rule has been 'received into and so become a source of English law' [to be read Australian law] . Therefore, it must be 'not inconsistent with rules enacted by statutes or finally declared by [the courts].'
- Inconsistent rules may only be enacted by legislation
- Once received, a rule of custom is to be treated as a true declaration of the common law
- However, the reception into domestic law will only be taken to have occurred 'as from the date the particular rule ... has been established'

International Law and the Common Law

International law and National Law

Broadly accepted view that international law serves as a legitimate influence for the development of common law

⇒ e.g. the common law may have 'to march in step with international law in order to provide the body of law to apply' (Brennan J in Mabo v Queensland (No. 2) [1992] 175 CLR 1)

More narrowly, international law viewed as filling lacunae in the existing common law

⇒ 'Judicial development of the common law must not be seen as a back door means of importing an unincorporated convention into Australian law' (Mason CJ and Deane J in *Minister for Immigration and Ethnic Affairs v Teoh* [1995] 183 CLR 273, 288)

Interpretation of the Constitution?

International law and National Law

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Can international law assist in the interpretation of the Constitution?

⇒No majority support in the High Court

✓But has been espoused by Kirby J in several cases, including:

'[I]nternational law is a legitimate and important influence on the development of the common law and constitutional law, especially when international law declares the existence of universal and fundamental rights. To the full extent that its text permits, Australia's Constitution, as the fundamental law of government in this country, accommodates itself to international law, including insofar as that law expresses basic rights. The reason for this is that the Constitution not only speaks to the people of Australia who made it and accept it for their governance. It also speaks to the international community as the basic law of the Australian nation which is a member of that community.' Kirby J in ***Newcrest Mining (WA) Ltd v Commonwealth*** **[1997] 190 CLR 513**

✓McHugh J in ***Al-Kateb v Godwin*** **[2004] 219 CLR 562**, inter alia:

- Use of international law for constitutional interpretation is 'heretical'
- Constituted amending the constitution, without public referendum
- International law rules are qualitatively different from taking into account political, social and economic developments



The High Court has been 'very cautious in its embrace of international law; it has kept its gloves and hat on at all times' … international law 'unsettles and challenges many of the rigidities and limitations of Australian law'

Hilary Charlesworth

Conclusion

International law and National Law

- Australia is a primarily a dualist system

- The interaction of Australia's domestic legal system with international law reflects separation of powers

- Executive (and many members of the legislative) have shown shifting attitude to international law, e.g. supportive of international trade law, but sceptical about the applicability of international human rights law to Australia (reflected in not fully implementing many treaty obligations) => preserving Australian sovereignty at the core of Australian unease about accepting international obligations

- Members of the judiciary hold contrasting views on international law; and these lead in turn to the creation of considerable uncertainty on the position of international law within the Australian legal system.

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PART B

JURISDICTION

International Law

Jurisdiction:

'…the lawful power of a State to define and enforce the rights and duties, and control the conduct, of natural and juridical persons' Oxman, MPEPIL

In international law, the concept of jurisdiction is linked to the notion of sovereignty.

Sovereignty

- Supreme authority within a territory subject to international requirements

Sovereignty is not a precondition for statehood; It is a description of statehood. It describes the attributes of statehood.

See: Besson, 'Sovereignty' in Max Planck Encyclopedia of Public International Law (online edition) paras 1–2.

International Law

JURISDICTION

Sovereignty implies:

- **Sovereign equality** – states are regarded as equal in international law regardless of their size, population or wealth.
- **Jurisdiction** – states have authority to create laws and enforce them.
- **Territorial control** – the freedom to use and dispose of the territory under the state's jurisdiction and to perform activities deemed necessary to the population. Territory = land, territorial sea up to 12 nautical miles from the coast and airspace above land and sea.
- **Duty of non-intervention** – no other state should intrude into the state's territory – ius excludendi alios (the right to exclude others).
- **Sovereign immunity** – the right of immunity from the jurisdiction of foreign courts for acts performed by the state in its sovereign capacity.
- **Diplomatic immunity** – the right of state representatives acting in their official capacity to immunity from the legal system of the state in which they are operating.

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Forms of Jurisdiction

Jurisdiction to prescribe: power of a state to apply its national law to any person or property.

Jurisdiction to enforce: right of a state to put its laws into operation e.g. arrest, seizure, freezing of assets and imposing fines.

Jurisdiction to adjudicate: the right of a state to exercise judicial powers over persons and objects.

International Law

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JURISDICTION

Jurisdiction to prescribe (also known as 'prescriptive jurisdiction' or 'legislative jurisdiction')

- "to make its law applicable to the activities, relations, or status of persons, or the interests of persons in things, whether by legislation, by executive act or order, by administrative rule or regulation, or by determination by a court". American Law Institute, Restatement (Third) Foreign Relations Law of the United States (1987) at § 401(a).

- States are in principle free to exercise prescriptive jurisdiction as they please, unless a prohibitive rule to the contrary could be identified (e.g. universal human rights).

***The Case of the S.S. Lotus, (France vs Turkey)* (PCIJ 1927).**

"*Far from laying down a general prohibition to the effect that States may not extend the application of their laws and the jurisdiction of their courts to persons, property and acts outside their territory, [international law] leaves them in this respect a wide measure of discretion which is only limited in certain areas by prohibitive rules; as regards other cases, every State remains free to adopt the principles which it regards as best and most suitable* (p. 19).

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Jurisdiction to enforce (aka enforcement jurisdiction)

"Enforcement means the exercise of jurisdiction by the government of a state, namely, the executive branch of government…responsible for the enforcement of regulations and the maintenance of public order". Rose et al. p. 102

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JURISDICTION

Jurisdiction to enforce (aka enforcement jurisdiction)

Unauthorised enforcement jurisdiction within another state, is illegal. A serious violation of that state's sovereignty and territorial integrity.

'The first and foremost restriction imposed by international law upon a state is that - failing the existence of a permissive rule to the contrary - it may not exercise its power in any form in the territory of another State."

~ Lotus Case (France vs Turkey) (PCIJ 1927) p.18.

E.g. Israeli agents' apprehension of Nazi officer Adolph Eichmann in 1960. Mossad team dispatched to Argentina. The operation involved capturing Eichmann and smuggling him out of Argentina without the consent of the Argentine authorities. UN Security *Council responded to the unlawful Israeli incursion into Argentina by requesting Israel to offer compensation. (Note Eichmann was brought to trial in Israel for crimes against humanity and war crimes and was executed in 1962)*

Jurisdiction to Adjudicate (aka adjudicative jurisdiction)

The power of domestic courts to hear and make a binding decision on a legal dispute. Includes power to apply the law to the facts of a case, interpret legal provisions, and make a determination as to the rights and obligations of the parties involved.

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Jurisdiction to Adjudicate - Lockerbie Incident 1988

FACTS

- US plane, Pan Am Flight 103, departing from Heathrow en route to New York, exploded mid-air and crashed over the town of Lockerbie, Scotland.
- 259 passengers and crew members were killed. Falling wreckage destroyed 21 houses and killed an additional 11 people on the ground.
- Large proportion of passengers were Americans.
- The explosive device was dispatched from Malta by Libyan nationals, passed through Frankfurt, Germany, and was loaded onto PA103 at Heathrow, UK.
- The UK asserted jurisdiction on an objective territorial basis, as the bomb exploded within UK airspace. Both US and UK asked for extradition.
- Libya asserted jurisdiction over its nationals.

See: UK/Netherlands Agreement Concerning A Scottish Trial in The Netherlands 1998

- ❑ A special Scottish Court was convened at Camp Zeist, in the Hague, with Scottish judges applying Scottish law in a foreign country.
- ❑ The venue was chosen because the Libyan government had refused to extradite the two suspects to either the UK or the US, citing concerns that they would not receive a fair trial. However, Libya was under substantial international pressure, particularly from the UN through sanctions, to hand over the suspects for trial.

The three forms of jurisdiction can be illustrated with a case of theft.

Prescriptive jurisdiction: Domestic criminalisation of theft.

Enforcement jurisdiction

- Physical apprehension of a suspected thief is a case of enforcing jurisdiction.
- Imposing a sentence of imprisonment to a convicted criminal
- Custody on remand while awaiting sentence

Adjudicative jurisdiction: Criminal prosecution of the individual.

Principles/grounds of jurisdiction

To lawfully assert prescriptive jurisdiction in cases involving a “foreign element”, a state must justify the grounds for jurisdiction.

- Principle of territoriality (territorial jurisdiction)
- Nationality principle (principle of active nationality)
  - Principle of passive personality
- Principle of protection (protective jurisdiction)
- Principle of universality (universal jurisdiction)

Territorial Jurisdiction

- Fundamental basis of jurisdiction - derived from state sovereignty.
- A state has jurisdiction over all acts, whether criminal or not, committed on its territory and over everyone located on the territory of that state.
- Subject to limitations imposed by international law, e..g human rights law, a state can legislate as it pleases on whatever matter it desires on its own territory.

Sometimes, a sequence of events causing an effect does not occur entirely within one state. A criminal offence may be initiated or planned in one state but committed in another ('cross-border/ transnational crimes')

Two approaches

1. **Objective territoriality:** focuses on the effects of an offence: A state has jurisdiction over a criminal offence that is completed on its territory even if some constituent elements of the offence took place abroad.

2. **Subjective territoriality:** a state has jurisdiction over all criminal offences as long as they are initiated or planned on its territory. Important in fighting transnational crime, such as international cybercrime.

Principle of Nationality (aka active personality)

First, let's look at the concept of nationality!

- No accepted definition of nationality in international law
- States are generally free to decide who they consider to be their 'nationals' and under what circumstances an individual qualifies for citizenship "domaine reserve".

Note: Ships and aircraft have the nationality of the state where they are registered.

Nottebohm case, ICJ, 1955

According to state practice, nationality is "a legal bond having as its basis a social fact of attachment, a genuine connection of existence, interests and sentiments, together with the existence of reciprocal rights and duties".

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Principle of (Active) Nationality (aka active personality)

- Nationality principle: relevant where a state of nationality may wish to criminally prosecute a national for acts committed abroad

- If an individual has dual nationality, both states of nationality may assert jurisdiction on the basis of nationality.

Principle of Passive Personality

A state can assert its jurisdiction over an offence committed abroad on the sole ground that the victim of the offence was a national of the state = State may claim for offences committed abroad which have affected nationals of that State.

US v Yunis case (1988) US District Court for the District of Columbia – Yunis, a Lebanese national, was involved in the hijacking of Royal Jordanian flight 402 in 1985 with American citizens aboard the aircraft. US claimed jurisdiction against the non-U.S. citizen for crimes committed (hostage taking) outside the United States. The U.S. government argued that it had jurisdiction over Yunis because his actions were against American citizens and thus violated U.S. law. Yunis was captured in international waters by the FBI and brought to the U.S. to stand trial. The US court found that the U.S. had jurisdiction.

- Passive personality principle remains controversial.
- Better as mere subsidiary means of jurisdiction.

PROTECTIVE JURISDICTION

- Allows a State to claim jurisdiction over actions committed abroad by non-citizens, for actions that threaten the nation's security.

- Requires the existence of a genuine threat to a vital state security interest.

E.g.

- Counterfeiting currency
- Espionage
- Conspiracy to commit treason (coup d’état)
- Attack on diplomatic personnel abroad

UNIVERSAL JURISDICTION

- Certain offences are so serious and disruptive to the international community as a whole that any state can claim jurisdiction over them no matter where they have been committed, who they have been committed against or the nationality of the offender.
- Lack of a direct link between the state and the offence
- Originally, it was the crime of piracy that gave rise to the notion of universal jurisdiction
- Crime of genocide, war crimes, crimes against humanity, torture

UNIVERSAL JURISDICTION (Cont.)

Example of a treaty providing for universal jurisdiction

Geneva Convention (IV), ART. 146.

"The High Contracting Parties undertake to enact any legislation necessary to provide effective penal sanctions for persons committing, or ordering to be committed, any of the grave breaches of the present Convention defined in the following Article. Each High Contracting Party shall be under the obligation to search for persons alleged to have committed,or to have ordered to be committed, such grave breaches, and shall bring such persons, regardless of their nationality, before its own courts. It may also, if it prefers,and in accordance with the provisions of its own legislation, hand such persons over for trial to another High Contracting Party concerned, provided such High Contracting Party has made out a prima facie case".

Art. 147 defines "Grave Crimes": wilful killing, torture or inhuman treatment, including biological experiments, wilfully causing great suffering or serious injury to body or health, unlawful deportation or transfer or unlawful confinement of a protected person,compelling a protected person to serve in the forces of a hostile Power,or wilfully depriving a protected person of the rights of fair and regular trial prescribed in the present Convention, taking of hostages and extensive destruction and appropriation of property, not justified by military necessity and carried out unlawfully and wantonly.

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UNIVERSAL JURISDICTION (Cont.)

Criminal Code Act 1995, Australia

Division 268—Genocide, crimes against humanity, war crimes and crimes against the administration of the justice of the International Criminal Court

Subdivision A—Introductory

268.1 Purpose of Division

(1) The purpose of this Division is to create certain offences that are of international concern and certain related offences.

(2) It is the Parliament's intention that the jurisdiction of the International Criminal Court is to be complementary to the jurisdiction of Australia with respect to offences in this Division that are also crimes within the jurisdiction of that Court.

(3) Accordingly, the *International Criminal Court Act 2002* does not affect the primacy of Australia's right to exercise its jurisdiction with respect to offences created by this Division that are also crimes within the jurisdiction of the International Criminal Court.

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ISSUE OF CONCURRING JURISDICTIONS

- Since states can assert their jurisdiction in respect of a given person or matter on multiple grounds, it is not uncommon for more than one state to claim jurisdiction in any given situation.
- No universally binding rules on how to resolve issues of concurring jurisdiction.
- International treaties provide clearer pathways e.g. 2001 Cybercrime Convention provides that when more than one state claims jurisdiction over an offence under the Convention, the states involved shall “consult with a view to determining the most appropriate jurisdiction for prosecution”. (Art 22(5)).
- In most cases, the state with the closest link to a particular offence is in the best position to investigate and try the offenders.



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